

25NNCV03878 25NNCV03878

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Case Number: 25NNCV03878 Hearing Date: August 6, 2026 Dept: E

Case No:

25NNCV03878

Hearing Date: 08/06/2026 – 8:30 a.m.

Trial

Date: UNSET

Case Name: BRIAN DARIO RODRIGUEZ v. GEORGIO BENTON GROUP LLC, et al.

[TENTATIVE RULING MOTION TO STRIKE]

RELIEF REQUESTED

Defendants, Janet Kim and THEBARHOLDING LLC, move to strike punitive damages from the complaint as follows:

- Pg 13, ¶165 “punitive damages”
- Pg 15, ¶175 “and for punitive damages,”
- Pg 18, ¶192 “and punitive damages”
- Pg 20, ¶101 “punitive damages,”
- Pg 15, ¶175 “and for punitive damages,”

- Pg. 20, Line 18 “d. Punitive damages,”

- Pg. 20, Line 20-22 f. “punitive damages,”

- Pg. 20, Line 22-24 g. “punitive damages,”

- Pg. 20, Line 25-27 h. “punitive damages,”

(Def. Not., p.
2.)

Defendants move
pursuant to CCP §§ 435, 436, and 437.

PROCEDURAL

Moving Party: Defendants,
Janet Kim and THEBARHOLDING LLC (Defendants)

Responding Party: Plaintiff, Brian Dario Rodriguez

Moving Papers: Notice; Memorandum; Mitchell Nguyen
Declaration; Proposed Order

Opposition Papers: Opposition

Reply Papers: Reply; Mitchell Nguyen
Declaration

Proof of Service Timely Filed (CRC,
Rule 3.1300(c)): Ok

16/21 Court Days Lapsed (CCP, § 1005(b)): Ok

Proper Address (CCP, § 1013, § 1013a, § 1013b):Ok

Meet and Confer

As explained in the CCP, section 435.5:

Before filing a motion to strike pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike. If an amended pleading is filed, the responding party shall meet and confer again with the party who filed the amended pleading before filing a motion to strike the amended pleading.

(CCP, § 435.5(a).)

“A determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion to strike.” (CCP, § 435.5(a)(4).)

Here, the parties dispute whether or not a meet and confer occurred.

LEGAL

STANDARD – MOTION TO STRIKE

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (CCP, § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (CCP, § 436(b).)

A motion

to strike cannot be based upon the grounds that a complaint fails to state facts sufficient to constitute a cause of action, but instead is properly based on grounds of superfluous or abusive allegations, or improprieties in form or procedure. (Ferraro v. Camarlinghi (2008) 161 Cal.App.4th 509, 528-29.)

The

grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (CCP, § 437; Turman v. Turning Point of Central California, Inc. (2010) 191 Cal.App.4th 53, 63 [“judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth”].)

Further, CCP § 431.10(a)-(c) states as follows:

(a) A material allegation in a pleading is one essential to the claim or defense and which could not be stricken from the pleading without leaving it insufficient as to that claim or defense.

(b) An immaterial allegation in a pleading is any of the following:

(1) An allegation that is not essential to the statement of a claim or defense.

(2) An allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense.

(3) A demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.

(c) An “immaterial allegation” means “irrelevant matter” as that term is used in Section 436.

(CCP, § 431.10(a)-(c).)

TENTATIVE RULING MOTION TO STRIKE

Plaintiff,

Brian Dario Rodriguez, filed a “civil complaint” on 6/5/2025, an “amended civil complaint” on 9/3/2025, and a “third amended complaint” on 4/16/2026.

It is

unclear why there is no second amended complaint in this action.

In any

event, the third amended complaint (TAC) appears to be the operative complaint.

Plaintiff's

TAC names the following Defendants:

(1) GEORGIO

BENTON GROUP LLC, a California limited liability company, DBA AEIRLOOM CATCHER,
AEIRLOOM BAKERY, AEIRLOOM CAFE AND CATCHER IN THE RYE BAR;

(2) GEORGIO

D. SPANOUDAKIS, an individual, also known as GEO and/or GEO SANTINI;

(3) JANET

KIM, an individual;

(4) JOY

DOE, an individual;

(5) ERIC

HODGKINS, an individual;

(6) KEVORK

KACHARIAN, an individual;

(7) MIRNA

DEMIRJIAN, an individual;

(8) BENTIN

CESHOEI, an individual; and

(9) DOES

1-25, INCLUSIVE.

On

4/30/2026, Plaintiff named Doe 1 as "thebarholding llc[.]"

On

7/30/2026, Plaintiff corrected Defendant's, Joy Doe, name to be Joy Siyarath.

Plaintiff

alleges that on February 14, 2025, he was invited to Catcher in the Rye Bar by his friend and bartender Oceana Nahoney. (TAC, ¶ 15.)

Plaintiff

alleges that Defendant, Geo, is a managing member of Georgio Benton Group LLC, which does business under the fictitious name of Aeirloom Catcher, Aeirloom Bakery, Aeirloom Cafe, and Catcher in the Rye. (TAC, ¶ 15.)

Plaintiff

alleges that Defendant, Janet Kim, is the owner. (TAC, ¶ 4.)

Plaintiff

alleges that he was drinking at the subject property with a friend, he accidentally drank another patron's drink, the patron noticed and informed Plaintiff, and Plaintiff immediately apologized and offered to purchase a replacement drink. (TAC, ¶ 16.)

Plaintiff

alleges Ms. Nahoney, an employee of the subject property, stated that the drink would be replaced for free and "on the house;" however, when the manager and owner of the bar were informed of the situation, they became upset and did not agree with that resolution. (TAC, ¶ 16.) Plaintiff alleges they instructed Defendant, Geo, to remove Plaintiff from the premises. (Id.)

Plaintiff

alleges that upon approaching Plaintiff, Geo yelled, "Get the fuck out of my bar, you fucking wetback," and immediately came up from behind Plaintiff, grabbed him without warning, and began striking and forcefully shoving Plaintiff to eject him from the bar. (TAC, ¶ 16.)

Plaintiff

alleges that the altercation lasted several minutes during which tables were knocked over, and the altercation continued outside the establishment. (TAC, ¶ 16.)

Plaintiff

alleges that Defendants: (1) failed to provide training; (2) failed to provide active security personnel to intervene or de-escalate the altercation; (3) allowed an untrained agent and/or associate of Defendants to handle the patron removal and

security functions; (4) authorized, encouraged, ratified, and/or failed to stop Defendant Geo's physical assaultive conduct; and (5) failed to properly supervise and control inebriated individuals acting with ownership or managerial authority on the premises. (TAC, ¶ 37.)

Defendants,

Janet Kim and THEBARHOLDING LLC, now move to strike requests for punitive damages contained within the fifth (violation of Unruh Civil Rights Act), sixth (battery), eighth (violation of the Ralph Civil Rights Act), and ninth (violation of Tom Bane Civil Rights Act) causes of action.

Defendants also move to strike requests for punitive damages contained within the prayer for relief.

Defendants argue that their motion to strike should be granted because Plaintiff has not alleged any facts illustrating malice, oppression, and/or fraud. Defendants argue there are no facts pled by Plaintiff to show that the conduct of Defendants toward Plaintiff was intentional, despicable, or malicious.

The Court does not find Defendants' arguments availing.

In

an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example by way of punishing the defendant. (Civil Code, § 3294(a).)

“‘Malice’

means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civil Code, § 3294(c)(1).)

“‘Oppression’

means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. (Civil Code, § 3294(c)(2).)

“‘Fraud’

means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury. (Civil Code, § 3294(c)(3).)

Further, Civil Code § 3294(b)

states:

An employer shall not be

liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.

(Civil

Code, § 3294(b).)

Here, Plaintiff's TAC alleges that Defendants' conduct was willful, malicious, fraudulent, and/or done in conscious disregard of Plaintiff's rights and safety, and those allegations are contained within Plaintiff's fifth cause of action. (See TAC, ¶ 61.)

Not only are the allegations pertaining to willful/malicious/conscious disregard located within the fifth cause of action (¶ 61), but those allegations are incorporated into the remaining causes of action in the TAC. (See TAC, ¶¶ 66, 78, 85, and 93.)

Further, setting aside the fact that the allegations in paragraph 61 could arguably be considered conclusory, Defendants' argument ignores the factual allegations pleaded in ¶¶ 15-20 of the TAC.

Further, not only did Plaintiff allege that Defendant Geo intentionally grabbed, attacked, and struck Plaintiff, Plaintiff alleges that all Defendants were the agents, servants, and employees of each other, acting

within the course and scope of said agency and employment, and each Defendant ratified and approved the acts of its agent. (TAC, ¶ 10.)

Therefore, Defendants' motion to strike is DENIED; Plaintiff sufficiently pleads a basis for punitive damages.